

Asset Transfer Cases: Initial Research

Verified Domestic and Cross-Border Transfers of Confiscated Criminal Assets

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2026-03-04

1 Purpose

This note is an **initial case-based research draft** responding to the request to focus on **actual transfers of confiscated criminal assets**, not just on abstract legal pathways. It identifies verified examples of:

- **domestic transfers** from forfeited assets to victims; and
- **cross-border transfers** from one state to another or to a monitored public-benefit mechanism.

The note relies primarily on **official sources**. Court decisions and formal instruments are included where they were readily identifiable from official materials.

2 Preliminary Finding

The first review suggests a clear pattern. In the strongest public examples, asset transfer usually requires **three distinct steps**:

1. **Final confiscation / forfeiture / settlement** in the recovering state.
2. **A legal allocation mechanism** for victims or a foreign beneficiary.
3. **A monitored implementation vehicle**, especially in cross-border corruption cases.

This is why the most developed models are not simple “state A seizes, then wires money to state B” cases. They usually combine confiscation with a remission process, a restitution agreement, or a monitored trust-fund or project structure.

3 Initial Case Table (Expanded)

Case	Jurisdiction(s)	Transfer type	Amount transferred	Recipient	Main legal mechanism	Court decision / legal instrument link	Verification status
Switzerland -> Nigeria (Abacha II)	Switzerland / Nigeria	Cross-border	USD 321 million	Nigerian population via social protection project	Confiscation in Swiss proceedings + tripartite agreement with World Bank monitoring	Swiss Federal Supreme Court (Abacha mutual legal assistance/confiscation framework) 1A.215/2004 (ATF 131 II 169) ¹ + 2017 tripartite agreement ²	Verified (official sources + court decision)
UK -> Nigeria (Ibora)	UK / Nigeria	Cross-border	GBP 4.2 million	Nigerian infrastructure projects	UK recovery proceedings + UK-Nigeria return agreement	UK-Nigeria MoU annex confirming confiscation orders since 2010 ³	Verified (official source). Court-order text not yet located in public full text

¹Swiss Federal Supreme Court, ATF 131 II 169 (Abacha et consorts v. Office fédéral de la justice), case 1A.215/2004, 7 Feb 2005, https://search.bger.ch/ext/eurospider/live/de/php/clir/http/index.php?highlight_docid=atf%3A%2F%2F131-II-169%3Ait&lang=de&type=show_document.

²Swiss FDFA, “Restitution of USD 321 million by Switzerland to Nigeria under World Bank oversight: signing of a tripartite agreement”, 4 Dec 2017, <https://www.eda.admin.ch/countries/democratic-republic-congo/en/home/news/news.html/content/eda/en/meta/news/2017/12/4/69088>.

³GOV.UK, “MoU between UK and Nigeria on the modalities for return of stolen assets confiscated by the UK: annex 1”, 2021, <https://www.gov.uk/government/publications/return-of-stolen-assets-confiscated-by-the-uk-agreement-between-the-uk-and-nigeria/mou-between-uk-and-nigeria-on-the-modalities-for-return-of-stolen-assets-confiscated-by-the-uk-annex-1>.

Case	Jurisdiction(s)	Transfer type	Amount transferred	Recipient	Main legal mechanism	Court decision / legal instrument link	Verification status
U.S. -> Malaysia (1MDB)	U.S. / Malaysia	Cross-border	about USD 1.4 billion	people of Malaysia	U.S. forfeiture litigation + DOJ repatriation	U.S. Court of Appeals (9th Cir.) in related 1MDB-linked forfeiture action, <i>U.S. v. PetroSaudi Oil Services</i> (13 Jun 2023) ⁴ + DOJ repatriation release ⁵	Verified (official source + court decision)

4 Court Decision Links and Transfer Nexus (Priority Cases)

4.1 Switzerland -> Nigeria (Abacha)

Switzerland returned **USD 321 million** of Abacha-linked assets to Nigeria under a tripartite agreement with World Bank monitoring.⁶⁷ Nigeria requested MLA; Swiss courts confirmed cooperation parameters (ATF 131 II 169, 2005);⁸ Geneva prosecutor confiscated assets (2016);⁹ funds were disbursed tranche-based to the National Social Safety Net Project for cash transfers to poor households.

⁴U.S. Court of Appeals for the Ninth Circuit, *United States v. PetroSaudi Oil Services (Venezuela) Ltd.*, Nos. 21-56228 & 22-55025, filed 13 Jun 2023, <https://cdn.ca9.uscourts.gov/datastore/opinions/2023/06/13/21-56228.pdf>.

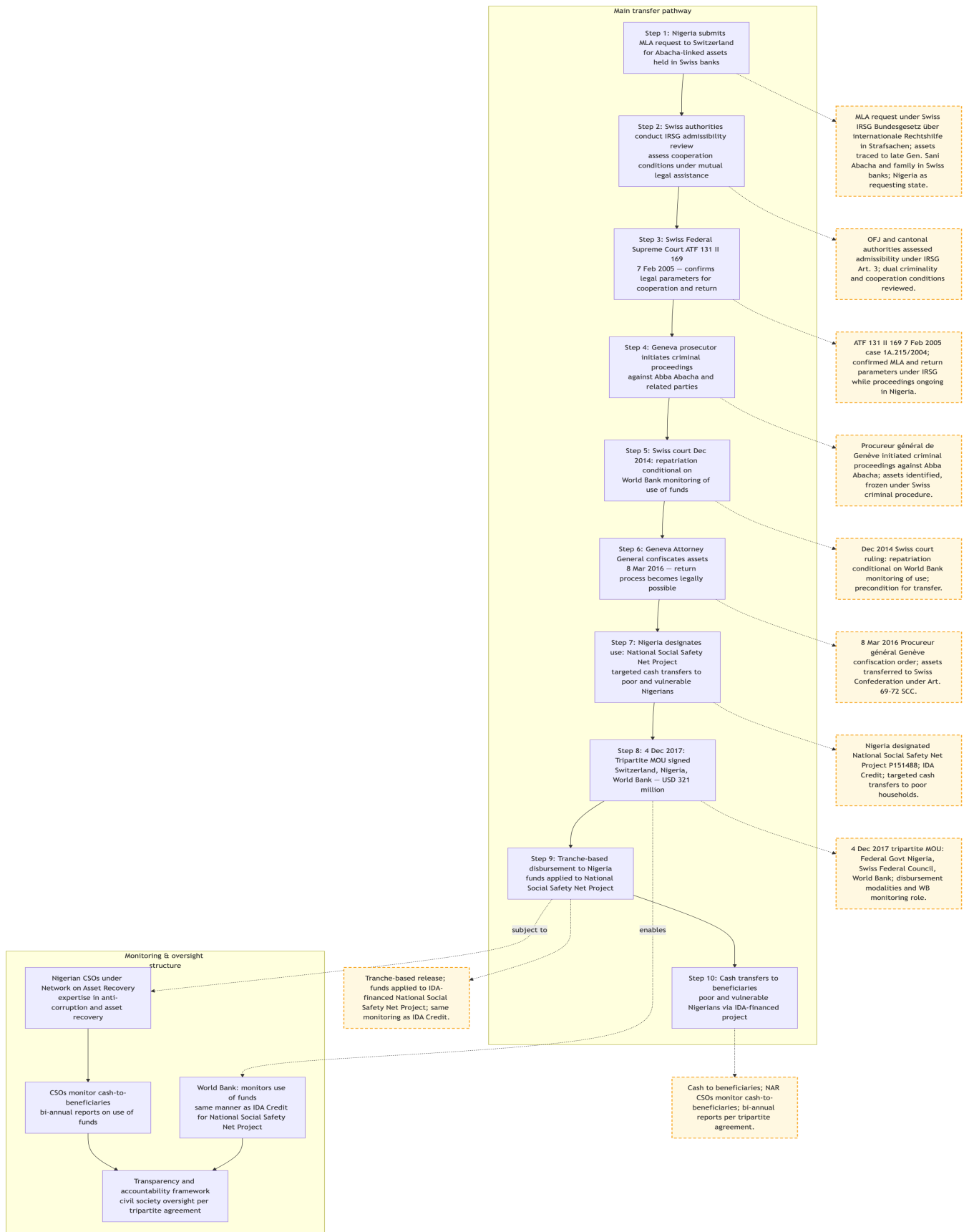
⁵U.S. Department of Justice, "Justice Department Repatriates \$1.4B Misappropriated 1MDB Funds to Malaysia", 13 Jun 2024, <https://www.justice.gov/archives/opa/pr/justice-department-repatriates-14b-misappropriated-1mdb-funds-malaysia>.

⁶Swiss FDFA, "Restitution of USD 321 million by Switzerland to Nigeria under World Bank oversight: signing of a tripartite agreement", 4 Dec 2017, <https://www.eda.admin.ch/countries/democratic-republic-congo/en/home/news/news.html/content/eda/en/meta/news/2017/12/4/69088>.

⁷World Bank, "World Bank Monitoring of Repatriated Abacha Funds", 4 Dec 2017, <https://www.worldbank.org/en/news/factsheet/2017/12/04/world-bank-monitoring-of-repatriated-abacha-funds>.

⁸Swiss Federal Supreme Court, ATF 131 II 169 (Abacha et consorts v. Office fédéral de la justice), case 1A.215/2004, 7 Feb 2005, https://search.bger.ch/ext/eurospider/live/de/php/clir/http/index.php?highlight_docid=atf%3A%2F%2F131-II-169%3Ait&lang=de&type=show_document.

⁹Swiss FDFA, "Switzerland and Nigeria conclude agreement on the return of USD 321 million of Abacha's assets", 8 Mar 2016, <https://www.eda.admin.ch/countries/romania/ro/home/aktuell/news.html/content/eda/en/meta/news/2016/3/8/60907>.

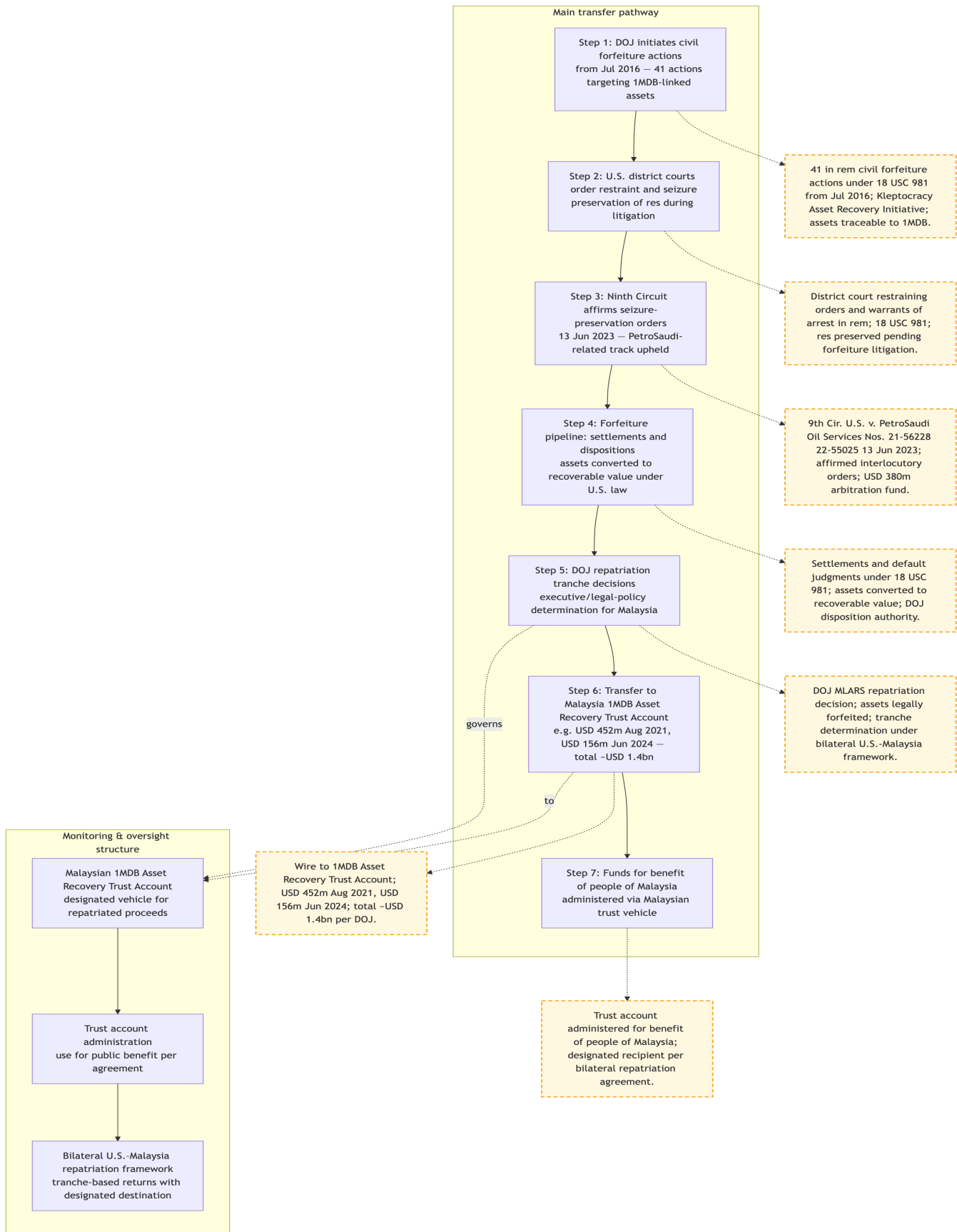


4.2 U.S. -> Malaysia (1MDB)

The U.S. repatriated ~USD 1.4 billion of 1MDB proceeds to Malaysia via civil forfeiture (41 actions from 2016) and DOJ repatriation tranches.¹⁰ Assets were transferred to the Malaysia 1MDB Asset Recovery Trust Account for public benefit. The

¹⁰U.S. Department of Justice, "Justice Department Repatriates \$1.4B Misappropriated 1MDB Funds to Malaysia", 13 Jun 2024, <https://www.justice.gov/archives/opa/pr/justice-department-repatriates-14b-misappropriated-1mdb-funds-malaysia>.

Ninth Circuit affirmed seizure authority in a related PetroSaudi forfeiture action (2023).¹¹



¹¹U.S. Court of Appeals for the Ninth Circuit, *United States v. PetroSaudi Oil Services (Venezuela) Ltd.*, Nos. 21-56228 & 22-55025, filed 13 Jun 2023, <https://cdn.ca9.uscourts.gov/datastore/opinions/2023/06/13/21-56228.pdf>.

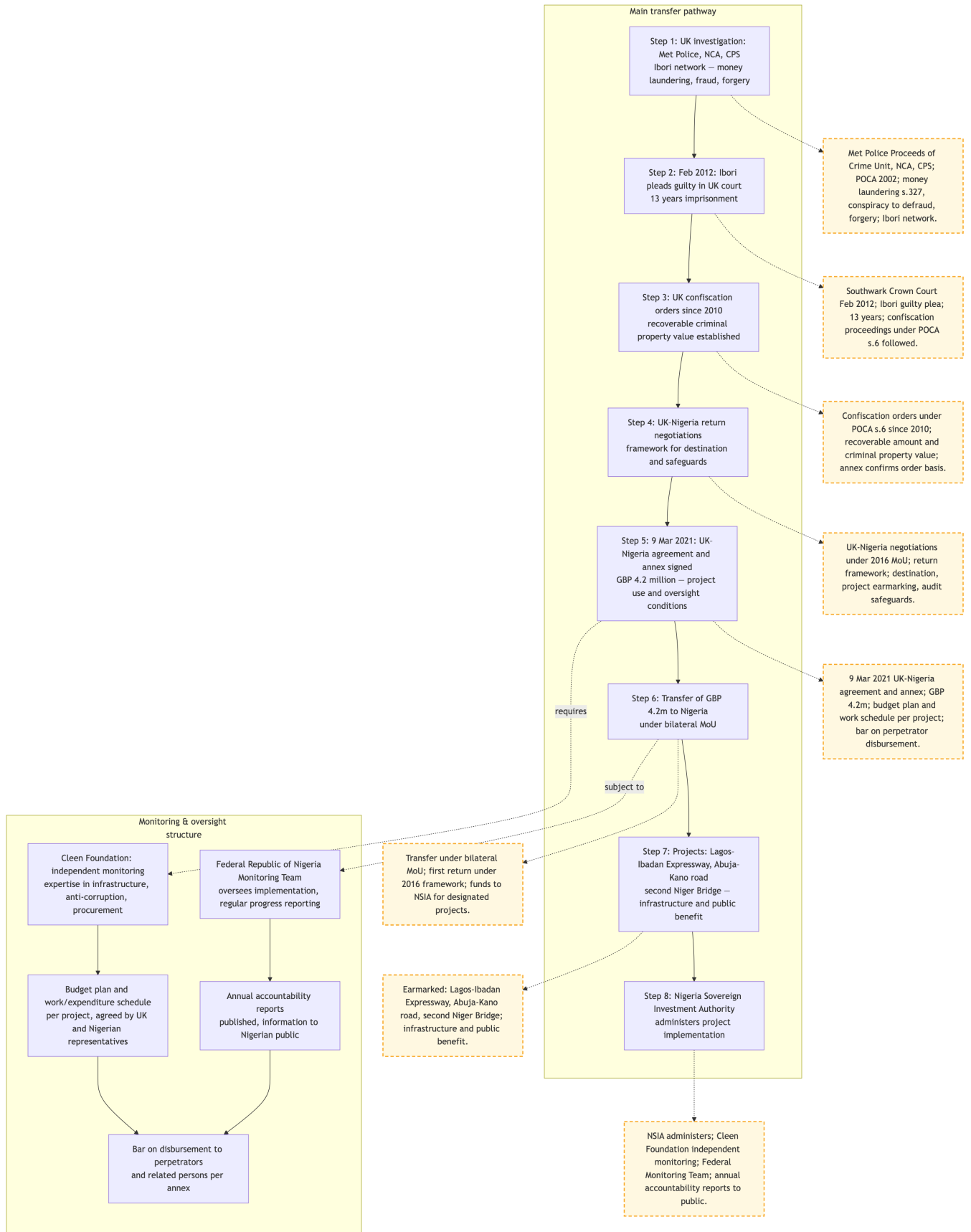
4.3 UK -> Nigeria (Ibora)

The UK returned **GBP 4.2 million** to Nigeria from proceeds recovered under confiscation orders since 2010.¹² The 2021 UK-Nigeria agreement earmarked funds for infrastructure (Lagos-Ibadan Expressway, Abuja-Kano road, second Niger Bridge).¹³ Cleen Foundation provides independent monitoring; Nigeria Sovereign Investment Authority administers implementation. Full-text public copy of the underlying confiscation orders is pending.¹⁴

¹²GOV.UK, “MoU between UK and Nigeria on the modalities for return of stolen assets confiscated by the UK: annex 1”, 2021, <https://www.gov.uk/government/publications/return-of-stolen-assets-confiscated-by-the-uk-agreement-between-the-uk-and-nigeria/mou-between-uk-and-nigeria-on-the-modalities-for-return-of-stolen-assets-confiscated-by-the-uk-annex-1>.

¹³GOV.UK, “UK to send millions of pounds recovered from corrupt officials back to Nigeria”, 9 Mar 2021, <https://www.gov.uk/government/news/uk-to-send-millions-of-pounds-recovered-from-corrupt-officials-back-to-nigeria>.

¹⁴GOV.UK, “MoU between UK and Nigeria on the modalities for return of stolen assets confiscated by the UK: annex 1”, 2021, <https://www.gov.uk/government/publications/return-of-stolen-assets-confiscated-by-the-uk-agreement-between-the-uk-and-nigeria/mou-between-uk-and-nigeria-on-the-modalities-for-return-of-stolen-assets-confiscated-by-the-uk-annex-1>.



5 Case Template Completion (Current Status)

Case	Crime type	Authority	Legal basis / instrument	Court decision link	Verification status
U.S. -> Mad-off vic-tims	Fraud / Ponzi scheme / money laundering proceeds	U.S. DOJ (MLARS) and appointed fund admin-istration	U.S. forfeiture + DOJ victim fund distribution process	Not prioritized for this tranche	Verified
U.S. -> West-ern Union vic-tims	Fraud facilitation and AML failures linked to consumer scams	U.S. DOJ	Forfeiture + remission process under DOJ administration	Not prioritized for this tranche	Verified
Switzer-land -> Nige-ria (Abacha II)	Corruption / embezzle-ment / laundering of illicit state assets	Swiss prose-cutorial and federal authorities; FDFA; World Bank (monitoring role)	Swiss confiscation framework + tripartite restitution agreement (2017)	ATF 131 II 169 (1A.215/2004) ¹⁵	Verified (strong)
UK -> Nige-ria (Ibori)	Corruption and laundering-related proceeds linked to Ibori network	UK government authorities; Nigerian authorities	Confiscation orders (since 2010) + UK-Nigeria return annex (2021)	Annex confirms confiscation-order basis; full court order text pending	Verified with court-text gap
U.S. -> Malaysia (1MDB)	Large-scale misappropria-tion / bribery / money laundering	U.S. DOJ; U.S. federal courts	Civil forfeiture actions + DOJ repatriation decisions	Ninth Circuit decision in related forfeiture action ¹⁶	Verified (strong)

6 Domestic Transfer Cases

6.1 1. U.S. Madoff Victim Fund

This is one of the clearest public examples of **forfeited assets being redistributed to victims at scale**. On 30 December 2024, the U.S. Department of Justice announced the **10th and final distribution** of the Madoff Victim Fund. The Department stated that more than **USD 4.3 billion** in forfeited funds had been paid to **40,930 victims in 127 countries**, bringing aggregate recovery to **93.71% of fraud losses**.¹⁷

The legal step preceding the transfer was the U.S. government's recovery of assets through **civil and criminal forfeiture connected to the Bernard L. Madoff fraud scheme**. The transfer mechanism was not an ad hoc political decision, but a formal DOJ-administered victim compensation structure.

Why it matters: this is a strong example of a **domestic victim-compensation model** built on forfeited assets rather than on ordinary restitution alone.

6.2 2. U.S. Western Union Remission Fund

Western Union is another strong domestic model because the DOJ publicly explains both the **forfeiture event** and the **distribution process**. On 9 September 2024, DOJ announced that the Western Union Remission Fund had begun its second distribution in phase two, transferring approximately **USD 18.5 million** to around **3,000 victims**. DOJ stated that, across both phases, the fund had already distributed **over USD 420 million to more than 175,000 victims**, who received full compensation for their losses.¹⁸

¹⁵Swiss Federal Supreme Court, ATF 131 II 169 (Abacha et consorts v. Office fédéral de la justice), case 1A.215/2004, 7 Feb 2005, https://search.bger.ch/ext/eurospider/live/de/php/clir/http/index.php?highlight_docid=atf%3A%2F%2F131-II-169%3Ait&lang=de&type=show_document.

¹⁶U.S. Court of Appeals for the Ninth Circuit, *United States v. PetroSaudi Oil Services (Venezuela) Ltd.*, Nos. 21-56228 & 22-55025, filed 13 Jun 2023, <https://cdn.ca9.uscourts.gov/datastore/opinions/2023/06/13/21-56228.pdf>.

¹⁷U.S. Department of Justice, "Justice Department's 10th Distribution Brings Total Provided to Over \$4.3B in Nearly Full Recovery to Over 40,000 Victims in Madoff Ponzi Scheme", 30 Dec 2024, <https://www.justice.gov/archives/opa/pr/justice-departments-10th-distribution-brings-total-provided-over-43b-nearly-full-recovery>.

¹⁸U.S. Department of Justice, "Justice Department Begins Second Distribution of Forfeited Funds to Compensate Victims of Fraud Scheme Facilitated by Western Union", 9 Sep 2024, <https://www.justice.gov/archives/opa/pr/justice-department-begins-second-distribution-forfeited-funds-compensate-victims-fraud>.

The official materials connect the transfer to **funds forfeited to the United States from Western Union**. The compensation mechanism was **remission**, a formal administrative process through which forfeited funds can be returned to victims.

Why it matters: this case shows that a transfer to victims can be structured even when the proceeds first pass through the state, provided there is a clear remission framework and a verified class of victims.

7 Cross-Border Transfer Cases

7.1 3. Switzerland -> Nigeria (Abacha II)

Switzerland's return of Abacha assets is one of the best documented cross-border models. According to the Swiss Federal Department of Foreign Affairs, on **4 December 2017** Switzerland, Nigeria and the World Bank signed a **tripartite agreement** governing the restitution of approximately **USD 321 million** to Nigeria's population.¹⁹

The official Swiss explanation is important because it identifies the legal step that came before transfer: the funds had been **repatriated and confiscated by Switzerland as part of criminal proceedings brought by the public prosecutor's office of Geneva against Abba Abacha**.²⁰ A prior Swiss press release from **8 March 2016** states that the return process became possible after the **Attorney General of the Canton of Geneva confiscated** the assets.²¹

The agreement did not authorize an unrestricted transfer to the Nigerian state budget. Instead, it required **World Bank-supported monitoring**, tranche-based disbursement, and anti-misuse safeguards. The World Bank's own factsheet likewise describes the arrangement as a monitored repatriation process.²²

Why it matters: this is a leading example of **confiscation plus monitored interstate restitution**, which is likely more relevant for Ukraine than an unconditioned bilateral transfer.

7.2 4. UK -> Nigeria (Ibori)

On **9 March 2021**, the UK and Nigeria agreed the return of **GBP 4.2 million** recovered from associates of former Delta State Governor James Ibori.²³ The official UK press release says the money would be used for Nigerian infrastructure and public-benefit projects, and that implementation would be subject to monitoring and audit.

The associated UK publication of the agreement's annex is useful because it identifies the legal precursor to the transfer. It states that the returned funds were recovered in proceedings resulting in **confiscation orders made since 2010**.²⁴ It also restricts the use of the money to specified projects and bars disbursement to alleged perpetrators and related persons.

Why it matters: this is a concise example of **confiscation orders plus a bilateral implementation agreement**. The transfer did not follow automatically from confiscation; the bilateral arrangement operationalized the destination and controls.

Court-link status: this initial tranche confirms the confiscation-order basis from official UK materials, but a full-text public copy of the operative confiscation orders is still pending.

7.3 5. U.S. -> Malaysia (1MDB)

The U.S. Department of Justice provides unusually clear official reporting on the repatriation of 1MDB proceeds. On **13 June 2024**, DOJ announced an additional **USD 156 million** repatriation to Malaysia, bringing the total returned by DOJ to approximately **USD 1.4 billion**.²⁵

DOJ links these returns to the long-running U.S. forfeiture campaign involving 1MDB proceeds. The Department states that, since July 2016, it had filed **41 civil forfeiture actions** and seized more than **USD 1.7 billion** in assets allegedly traceable to the scheme.²⁶

A published judicial layer is available in a related forfeiture track: in *United States v. PetroSaudi Oil Services (Venezuela) Ltd.* (Ninth Circuit, 13 June 2023), the court affirmed interlocutory orders preserving and permitting seizure of assets allegedly connected to 1MDB proceeds.²⁷ This did not itself order repatriation to Malaysia, but it upheld legal control over assets in the forfeiture pipeline that is necessary before transfer decisions.

¹⁹Swiss FDFA, "Restitution of USD 321 million by Switzerland to Nigeria under World Bank oversight: signing of a tripartite agreement", 4 Dec 2017, <https://www.eda.admin.ch/countries/democratic-republic-congo/en/home/news/news.html/content/eda/en/meta/news/2017/12/4/69088>.

²⁰Swiss FDFA, "Restitution of USD 321 million by Switzerland to Nigeria under World Bank oversight: signing of a tripartite agreement", 4 Dec 2017, <https://www.eda.admin.ch/countries/democratic-republic-congo/en/home/news/news.html/content/eda/en/meta/news/2017/12/4/69088>.

²¹Swiss FDFA, "Switzerland and Nigeria conclude agreement on the return of USD 321 million of Abacha's assets", 8 Mar 2016, <https://www.eda.admin.ch/countries/romania/ro/home/aktuell/news.html/content/eda/en/meta/news/2016/3/8/60907>.

²²World Bank, "World Bank Monitoring of Repatriated Abacha Funds", 4 Dec 2017, <https://www.worldbank.org/en/news/factsheet/2017/12/04/world-bank-monitoring-of-repatriated-abacha-funds>.

²³GOV.UK, "UK to send millions of pounds recovered from corrupt officials back to Nigeria", 9 Mar 2021, <https://www.gov.uk/government/news/uk-to-send-millions-of-pounds-recovered-from-corrupt-officials-back-to-nigeria>.

²⁴GOV.UK, "MoU between UK and Nigeria on the modalities for return of stolen assets confiscated by the UK: annex 1", 2021, <https://www.gov.uk/government/publications/return-of-stolen-assets-confiscated-by-the-uk-agreement-between-the-uk-and-nigeria/mou-between-uk-and-nigeria-on-the-modalities-for-return-of-stolen-assets-confiscated-by-the-uk-annex-1>.

²⁵U.S. Department of Justice, "Justice Department Repatriates \$1.4B Misappropriated 1MDB Funds to Malaysia", 13 Jun 2024, <https://www.justice.gov/archives/opa/pr/justice-department-repatriates-14b-misappropriated-1mdb-funds-malaysia>.

²⁶U.S. Department of Justice, "Justice Department Repatriates \$1.4B Misappropriated 1MDB Funds to Malaysia", 13 Jun 2024, <https://www.justice.gov/archives/opa/pr/justice-department-repatriates-14b-misappropriated-1mdb-funds-malaysia>.

²⁷U.S. Court of Appeals for the Ninth Circuit, *United States v. PetroSaudi Oil Services (Venezuela) Ltd.*, Nos. 21-56228 & 22-55025, filed 13 Jun 2023, <https://cdn.ca9.uscourts.gov/datastore/opinions/2023/06/13/21-56228.pdf>.

Why it matters: 1MDB shows that large cross-border returns are possible, but only after a lengthy forfeiture phase, substantial tracing work, and a dedicated repatriation decision by the recovering state.